



\*BS-9683\*

## Constitution Of Craigrothie Village Hall

### 1. NAME

The name of the Organisation shall be the Craigrothie Village Hall (herein after called "the Hall")

### TRUSTEES

Three Trustees will be appointed in accordance with the terms of the Feu Charter, whose responsibilities and powers are such as are therein defined. The Trustees shall comprise of one representative of the Stewart Family of Struthers Farm, if so desired by them, The Parish Minister, the Local Elected Councillor. AS

### 2. OBJECTS

The objects of the Hall shall be to promote the benefit of the inhabitants of Craigrothie and its environs without distinction of sex, sexuality, political, religious or other opinions by associating the local statutory authorities, voluntary organizations and inhabitants in a common effort to advance education and to provide facilities, or assist in the provision of facilities, in the interests of social welfare for recreation and other leisure-time occupation so that the conditions of their lives may be improved.

### 3. POWERS

For the furtherance of the stated objects, the Hall may:

- 3.1 promote the Hall to the general public;
- 3.2 develop services and facilities relevant to the needs of its users;
- 3.3 purchase, lease or exchange, hire or otherwise acquire any equipment and any rights and privileges necessary for the promotion of the said objects;
- 3.4 maintain and alter as necessary any part of the fabric of the Hall;
- 3.5 engage the services of volunteers and pay any out of pocket expenses to assist with the work of the Hall;
- 3.6 employ, pay and dismiss staff as appropriate;
- 3.7 hold a bank account in the name of the Hall;
- 3.8 receive contributions by way of donations and to raise funds, to further the aims of the Hall and expend money received from any source to further the said objects;
- 3.9 do all such other lawful things as appear to the Management Committee to be necessary or desirable in pursuance of these objects.

### 4. EQUAL OPPORTUNITIES

- 4.1 In relation to these aims and objectives the Hall will strive to avoid intentional and unintentional discrimination against any group or individual on any grounds.
- 4.2 The Hall will work to ensure that its services are accessible to people who are disadvantaged or discriminated against in society by virtue of their sex, race, ethnic origin, disability, marital status, age, sexual orientation, religious belief or by reason of their geography.
- 4.3 In doing this, the Hall acknowledges that services may need to be changed in order to ensure the above.

6. **MEMBERSHIP**

*Management*

Membership for election to the Committee shall be open to all residents of Craigrothie and the surrounding area aged 18 and over.

6. **ADMISSION FEES**

The Management Committee shall determine any fees or charges for the hire and use of the Hall, which shall be kept under review.

7. **THE MANAGEMENT COMMITTEE**

7.1 At the Annual General Meeting the membership, being all eligible residents of the community, shall be convened by the Management Committee each year and not later than fifteen months from the previous Annual General Meeting, and shall elect a Management Committee consisting of not less than seven and not more than eleven members from whom the membership will appoint Office Bearers, a Chair, Vice-Chair, Treasurer, and Secretary.

*In the event of*

Any failure to elect a full committee, the membership will decide in what way any vacancies should be filled.

7.2 The Management Committee will administer the policies and affairs of the Hall.

7.3 The Management Committee shall appoint and discharge a capable independent financial examiner who must not be a member of the Management Committee to examine the Hall accounts on an annual basis.

7.4 All members of the Management Committee will retire annually at the Annual General Meeting but may be eligible for re-election to the Management Committee.

7.5 The Management Committee shall hold a minimum of 6 meetings per year.

7.6 The Management Committee may fill any vacancies by co-option and any such appointments will remain valid until the next Annual General Meeting.

8. **SUB-COMMITTEE**

The Committee may appoint Sub-Committees, all to be convened by the elected Chair, for any special purposes or events. The Chair shall be an *ex officio* member of all Sub-Committees with final approval of any issues remaining with the full Committee.

9. **RULES OF PROCEDURE AT ALL MEETINGS**

9.1 **Quorum**

9.1.1 **General Meetings**

A Quorum for General Meetings shall comprise of not less than seven of eligible residents of the community.

9.1.2 **Committee Meetings**

Subject to Guidelines, normally six members of the Management Committee and Sub-Committees shall form a quorum providing also that at least one Office Bearer of the Committee (in the case of the Chair) is present.

9.2

### Special Meetings

The Chair of the Management Committee may request the Secretary at any time to call a Special General Meeting of the Hall. A Special General Meeting of the Hall will also be called on the written demand, to the Secretary, of ten eligible members of the community, or one-third whichever is less. The Secretary shall require to be given ten days notice of this request.

9.3

### Voting

With the exception of Clause 12 (*Alterations to the Constitution*) all questions arising at any meeting shall be decided by a simple majority of those present and entitled to vote thereat. No person shall exercise more than one vote, even though he may have been appointed to represent two or more interests. In case of an equality of votes the Chair shall have a second or casting vote.

9.4

### Declaration of Interest

No individual may take part in the decision-making process at Committee meetings, or vote, on matters in which they have a financial or other personal interest. Individuals will be expected to declare any such financial or other personal interests prior to the discussions taking place. Failure to declare an interest may result in the individual's membership being suspended or terminated, and the decision being declared invalid. (Sub-Committees may be convened to allow such individuals to take part in the discussions - see Section 8)

9.5

### Minutes

Minutes shall be kept by the Management Committee for all meetings, including any sub-committee meetings, and the Secretary shall keep a record of all proceedings and resolutions.

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## STAFF

*Management*

10.1

No member of staff may be a member of the Committee or vote on its deliberations.

10.2

No member of the Management Committee shall be appointed to any salaried office of the Hall, but may receive reimbursement of such expenses deemed as necessary while carrying out their duties as agreed by the Committee.

10.3

The Committee shall ensure that each member of staff is issued with a Terms and Conditions of Employment and that established support and grievance and disciplinary procedures are in place.

11.

## FINANCE

11.1 The Hall's financial year shall end on March 31<sup>st</sup>.

11.2 The Treasurer shall keep proper accounts of the finances of the Hall.

11.3 All income shall be put into a Bank Account administered by the Management Committee who will authorise a minimum of two and a maximum of four signatories.

For

11.4 All cheques, bills of exchange, etc., Two officers of the Committee, one of who shall in normal circumstances be the Treasurer, shall sign relating to the Hall's Bank Account.

11.5 At least once every financial year the Hall's accounts shall be submitted to a capable

Independent examiner and a report thereon obtained. The Management Committee prior to the Annual General Meeting shall submit independently examined accounts. Any alteration to this Clause shall be endorsed upon the Deeds, together with a copy of the resolution relating thereto.

11.6 All income shall be used to further the objects of the Hall and for no other purpose.

## 12. ALTERATIONS TO THE CONSTITUTION

- 12.1 The Constitution may be altered at the AGM or at a Special General Meeting called for that purpose, and will require to be passed by not less than two-thirds of the members of the Hall present at that meeting and eligible to vote.
- 12.2 A resolution for the alteration of the Constitution shall be lodged in writing with the Secretary of the Hall at least thirty clear days before the meeting at which the resolution is to be considered. At least twenty-one clear days' notice in writing of such meeting shall be given by the Secretary to the members and shall include notice of the alteration proposed. *appended a.w. clause 1.2.*
- 12.3 No alterations shall come into force unless notified to and confirmed by the Trustees.

## 13. DISSOLUTION

- 13.1 The Hall Committee may at any time be dissolved by those eligible to vote. At least twenty-one clear days' notice shall have been sent to all members of the Hall regarding this dissolution.
- 13.2 In the event of the dissolution of the Hall Committee, any assets remaining after all debts and liabilities are paid shall not be distributed among the members of the Hall, but shall be given or transferred to a recognised charitable Hall(s) within Craigrothie having objects similar to those of the Hall. The Hall building will remain the responsibility of the Trustees

## THIS CONSTITUTION

was adopted at an Annual General Meeting of the Hall held on 2nd June 2003.

### Signed:

|                                         |                                            |
|-----------------------------------------|--------------------------------------------|
| Position - <u>Trustee</u>               | Position - <u>TRUSTEE</u>                  |
| Name - <u>Margaret Lymbie</u>           | Name - <u>Rev. Matthew Ross (Minister)</u> |
| Address - <u>76 Anchorage Link Park</u> | Address - <u>THE MANSE, ST ANDREWS RD,</u> |
| <u>Elie Fife KY91AX</u>                 | <u>Ceres, Cupar, Fife, KY15 5NQ.</u>       |
| Position - <u>Chairperson</u>           | Position - <u>VICE CHAIRPERSON</u>         |
| Name - <u>S. P. Tennet</u>              | Name - <u>[Signature]</u>                  |
| Address - <u>3 Walton Court</u>         | Address - <u>EAST WILTON HILL</u>          |
| <u>Craigrothie</u>                      | <u>By Chance Inn</u>                       |
| <u>KY15 5RZ</u>                         | <u>KY15 5PQ.</u>                           |
| <u>02-06-03</u>                         | <u>02.06.03.</u>                           |
| <u>Certified as true copy</u>           | <u>CERTIFIED AS TRUE COPY.</u>             |

*Nicholas Morris, Treasurer, Craigrothie Village Hall Committee  
(Scottish Charity SC033525)*

The Old Mill  
Craigrothie  
Cupar  
Fife KY15 5PZ  
Scotland

25 August 2011

Andrew Boler  
Charities Services Case Officer  
Office of the Scottish Charity Regulator  
2<sup>nd</sup> Floor, Quadrant House  
9 Riverside Drive  
Dundee DD1 4NY

Dear Mr Boler,

Constitution - Craigrothie Village Hall (SC033525)

Further to our recent email exchanges, thank you for pointing out the error in the constitution attached to my 3 August 2011 letter, which wrongly applied the amendments adopted on 3 May 2011 to a draft of the constitution adopted on 3 June 2003 and not to the constitution as actually adopted. I apologise for this mistake and the extra work it has given you.

I confirm that the only amendment made on 3 May 2011 to the constitution as adopted on 3 June 2003 was the addition of a new sentence to clause 7.2. It was not the intention of the trustees to change the objects clause, and approval of the Annual General Meeting on 3 May 2011 was only sought for the addition to clause 7.2 and for the change of the end of the financial year, which change was unnecessary, as the date of 30 September in the draft had been corrected to 31 March before adoption on 3 June 2003.

Please find herewith a copy of the amended constitution. The only change of substance to 3 June 2003 version that you hold is thus to clause 7.2. The text has, however, been reformatted and minor typographical and editorial errors have been corrected.

Because the same draft constitution was used in error in preparing the last three annual reports, I regret that the entry against "Charitable purposes" under "Objective and activities" in Appendix 1 quotes the wrong text for the objects clause (though there is no inconsistency with the sense of the correct text).

With best wishes,

Yours sincerely,

Nicholas Morris

Tel 01334 829 116; [craigrothie@hotmail.com](mailto:craigrothie@hotmail.com)

## **Constitution of Craigrothie Village Hall (SC033525)**

### **1. Name and Trustees**

1.1 The name of the Organization shall be the Craigrothie Village Hall (herein after called "the Hall").

1.2 Three Trustees will be appointed in accordance with the terms of the Feu Charter, whose responsibilities and powers are such as therein defined. The Trustees shall comprise of one representative of the Stewart Family of Struthers Farm, as so desired by them, the Parish Minister, and the Local Elected Councillor.

### **2. Objects**

The objects of the Hall shall be to promote the benefit of the inhabitants of Craigrothie and its environs without distinction of sex, sexuality, political, religious or other opinions by associating the local statutory authorities, voluntary organizations and inhabitants in a common effort to advance education and to provide facilities, or assist in the provision of facilities, in the interests of social welfare for recreation and other leisure-time occupation so that the conditions of their lives may be improved.

### **3. Powers**

For the furtherance of the stated objects, the Hall may:

- 3.1 promote the Hall to the general public;
- 3.2 develop services relevant to the needs of its users;
- 3.3 purchase, lease or exchange, hire or otherwise acquire any equipment and any rights and privileges necessary for the promotion of the said objects;
- 3.4 maintain and alter as necessary any part of the fabric of the Hall;
- 3.5 engage the services of volunteers and pay any out of pocket expenses to assist with the work of the Hall;
- 3.6 employ, pay and dismiss staff as appropriate;
- 3.7 hold a bank account in the name of the Hall;
- 3.8 receive contributions by way of donations and raise funds to further the aims of the Hall, and expend money received from any source to further the said objects;
- 3.9 do all such other lawful things as appear to the Management Committee to be necessary or desirable in pursuance of these objects.

### **4. Equal Opportunities**

4.1 In relations to these aims and objectives the Hall will strive to avoid intentional and unintentional discrimination against any group or individual on any grounds.

4.2 The Hall will work to ensure that its services are accessible to people who are disadvantaged or discriminated against in society by virtue of their sex, race, ethnic origin, disability, marital status, age, sexual orientation, religious belief, or by reason of their geography.

4.3 In doing this, the Hall acknowledges that services may need to be changed in order to ensure the above.

### **5. Membership**

Membership for election to the Management Committee shall be open to all residents of Craigrothie and the surrounding area aged 18 and over.

Constitution of Craigrothie Village Hall (SC033525)

**6. Admission Fees**

The Management Committee shall determine any fees or charges for the hire and use of the Hall, which shall be kept under review.

**7. The Management Committee**

7.1 At the Annual General Meeting, the membership, *being all eligible residents of the community*, shall be convened by the Management Committee each year and not later than fifteen months from the previous Annual General Meeting, and shall elect a Management Committee consisting of not less than seven and not more than eleven members from whom the membership will appoint Office Bearers: a Chair, Vice-Chair, Treasurer, and Secretary.

In the event of a failure to elect a full committee, the membership will decide in what way any vacancies should be filled.

7.2 The Management Committee will administer the policies and affairs of the Hall. The Management Committee members act as the charity trustees.

7.3 The Management Committee shall appoint and discharge a capable independent financial examiner who must not be a member of the Management Committee to examine the Hall accounts on an annual basis.

7.4 All members of the Management Committee will retire annually at the Annual General Meeting but may be eligible for re-election to the Management Committee.

7.5 The Management Committee shall hold a minimum of six meetings per year.

7.6 The Management Committee may fill any vacancies by co-option and any such appointments will remain valid until the next Annual General Meeting.

**8. Sub-Committee**

The Management Committee may appoint Sub-Committees, all to be convened by the elected Chair, for any special purposes or events. The Chair shall be an *ex officio* member of all Sub-Committees with final approval of any issues remaining with the full Management Committee.

**9. Rules of Procedure at all Meetings**

**9.1 Quorum**

**9.1.1 General Meetings**

A quorum for General Meetings shall comprise not less than seven eligible residents of the community.

**9.1.2 Committee Meetings**

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## Constitution of Craigrothie Village Hall (SC033525)

been appointed to represent two or more interests. In the case of an equality of votes the Chair shall have a second or casting vote.

### 9.4 Declaration of Interest

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### 9.5 Minutes

Minutes shall be kept by the Management Committee for all meetings, including of any Sub-Committees, and the Secretary shall keep a record of all proceedings and resolutions.

## 10. Staff

10.1 No member of staff may be a member of the Management Committee or vote on its deliberations.

10.2 No member of the Management Committee shall be appointed to any salaried office of the Hall, but may receive reimbursement of such expenses deemed as necessary while carrying out their duties as agreed by the Management Committee.

10.3 The Management Committee shall ensure that each member of staff is issued with terms and conditions of employment, and that established support, grievance and disciplinary procedures are in place.

## 11. Finance

11.1 The Hall's financial year shall end on 31 March.

11.2 The Treasurer shall keep proper accounts of the finances of the Hall.

11.3 All income shall be put into a Bank Account administered by the Management Committee who will authorize a minimum of two and a maximum of four signatories.

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**Constitution of Craigrothie Village Hall (SC033525)**

shall be given by the Secretary to the members and shall include notice of the alteration proposed.

12.3 No alterations shall come into force unless notified to and confirmed by the Trustees appointed under clause 1.2.

**13. Dissolution**

13.1 The Hall Committee may at any time be dissolved by those eligible to vote. At least twenty-one clear days' notice shall have been sent to all members of the Hall regarding this dissolution.

13.2 In the event of the dissolution of the Hall Committee, any assets remaining after all debts and liabilities are paid shall not be distributed among the members of the Hall, but shall be given or transferred to a recognised charitable Hall(s) within Craigrothie having object similar to those of the Hall. The Hall building will remain the responsibility of the Trustees.

***Status of the constitution***

This constitution was adopted at the Annual General Meeting of the Hall on 2 June 2003 and amended at the Annual General Meeting of the Hall on 3 May 2011 (by the addition of the second sentence to clause 7.2).